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Amending Acts

1. Some Nepal Acts Amendment Act, 2072 (2015) 2072.1.13
2. Some Nepal Acts Relating to Education Amendment Act, 2077 (2020) 2077.03.11
3. Some Nepal Acts Amendment Act, 2082 (2025) 2082.04.14

Act No. 2 of the year 2067 (2010)

An Act Made to Provide for the Mid-Western University

Preamble: Whereas, it is desirable to make necessary provisions relating to the establishment and operation of the Mid-Western University with the investment of the Government of Nepal, in order to provide qualitative and standard higher education opportunities through the study, teaching and research of arts, science, medical science, law, management, education, technical and other vocational subjects to all people including those in remote areas in an accessible manner, to supply skilled human resources for national development, and to further enhance the cleanliness, dignity and achievement-orientation of the country's educational and academic environment by improving the quality of higher education on a competitive basis;

Now, therefore, the Constituent Assembly has enacted this Act pursuant to Sub-Article (1) of Article 83 of the Interim Constitution of Nepal, 2063 (2006). Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Mid-Western University Act, 2067 (2010)."
- (2) This Act shall come into force immediately. 2.

Definitions: Unless the subject or context otherwise requires, in this Act,- (a) "University" means the Mid-Western University established pursuant to Section 3. (b) "Assembly" means the University Assembly pursuant to Section 7. (c) "Academic Council" means the Academic Council pursuant to Section 10. (d) "Executive Council" means the Executive Council pursuant to Section 12. (e) "Service Commission" means the Service Commission pursuant to Section 21. (f) "Faculty" means the Faculty pursuant to Section 14. (g) "Research Center" means the Research Center pursuant to Section 15. (h) "Faculty Board" means the Faculty Board pursuant to Section 16. (i) "Campus" means the constituent campus of the University, and this term also denotes a campus affiliated with the University. (j) "Curriculum Development Center" means the Curriculum Development Center pursuant to Section 18. (k) "Chancellor" means the Chancellor pursuant to Section 22. (l) "Pro-Chancellor" means the Pro-Chancellor pursuant to Section 23. (m) "Vice-Chancellor" means the Vice-Chancellor pursuant to Section 24. (n) "Registrar" means the Registrar pursuant to Section 25. (o) "Dean" means the head of a Faculty. (p) "Director" means the Director pursuant to Section 27. (q)

"Teacher" means Professor, Associate Professor, Assistant Professor and Lecturer who provide education or conduct or cause to conduct research in the University, and this term also denotes instructors at various levels of the University and persons designated as teachers under the rules made under this Act. (r) "Employee" means a person, other than a teacher, who performs or causes to perform managerial and supportive functions in relation to the operation of the University. (s) "Student" means a female or male student enrolled for study or research in a Campus. (t) "Prescribed" or "as prescribed" means prescribed or as prescribed under the rules made under this Act. Chapter-2 Establishment of the University 3. Establishment of the University: (1) The Mid-Western University is established for the purposes of study, teaching and research in arts, science, medical science, law, management, education, technical and other vocational subjects, among others. (2) At the time of commencement of this Act, the University shall be established in the Surkhet Campus premises by jointly including Surkhet Campus (Education), Surkhet, which is operated as a constituent campus of Tribhuvan University receiving grants from the Government of Nepal, and affiliated Birendranagar Multiple Campus, Surkhet, and Public Science Campus, Surkhet. 4.

Office Bearers of the University: The University shall have the following office bearers:-

- (a) Chancellor
- (b) Pro-Chancellor
- (c) Vice-Chancellor
- (d) Chairperson of the Service Commission
- (e) Registrar
- (f) Dean
- (g) Director
- (h) Campus Chief
- (i) Other office bearers as prescribed. Chapter-4

Formation, Functions, Duties and Powers of the Assembly

7. Formation of the Assembly: (1) There shall be an Assembly as the supreme body of the University.

(2) The Assembly shall be formed as follows:-

- (a) Chancellor ? Chairperson
- (b) Pro-Chancellor ? Vice-Chairperson
- (c) Vice-Chancellor ? Member
- (d) Member, National Planning Commission (looking after education) ? Member
- (e) Amended by Some Nepal Acts Relating to Education Amendment Act, 2077. Chairperson of the University Grants Commission, or a member of that Commission designated by him/her ? Member
- (f) Two from among Vice-Chancellors of other universities ? Member
- (g) Secretary, Amended by Some Nepal Acts Relating to Education Amendment Act, 2077. Ministry of Education, Science and Technology ? Member
- (h) Secretary, Ministry of Finance ? Member
- (i) Amended by Some Nepal Acts Relating to Education Amendment Act, 2077. Chief Secretary of Karnali

Province Government ? Member

(j) Deans ? Member

(k) Director ? Member

(l) Two from among Campus Chiefs ? Member

(m) Two from among Teachers ? Member

Deleted by Some Nepal Acts Amendment Act, 2072.(n)

(o) Amended by Some Nepal Acts Relating to Education Amendment Act, 2077. Head and Deputy Head of the Municipality where the University's central office is located ? Member

(p) Central President of Nepal Professor Association ? Member

(q) President, University Professor Association ? Member

(r) President of the University Free Students Union ? Member

(s) One from among Donors ? Member

(t) One from among Education Enthusiasts and Social Workers ? Member

Added by Some Nepal Acts Relating to Education Amendment Act, 2077.(t1) President, Chamber of Commerce and Industry, Surkhet ? Member

(u) One from among Employee Representatives ? Member

(v) Registrar ? Member-Secretary

(3) Except for the ex-officio members under Sub-section (2), other members shall be nominated by the Chancellor on the recommendation of the Executive Council.

(4) The term of office of nominated members shall be three years.

(5) If the office of a nominated member falls vacant for any reason, another person shall be nominated for the remaining period by completing the procedure under Sub-section (3). 8.

Meeting of the Assembly: (1) A meeting of the Assembly shall compulsorily be held at least twice a year. (2) The meeting of the Assembly shall be held on such date, time and place as specified by the Chairperson of the Assembly. (3) The Member-Secretary of the Assembly shall give notice to all members of the Assembly including the agenda of subjects to be discussed at the meeting at least fifteen days prior to the meeting. (4) If more than fifty percent of the total number of existing members of the Assembly are present, the meeting shall be deemed to have constituted a quorum. (5) The meeting of the Assembly shall be chaired by the Chairperson of the Assembly, in his/her absence by the Vice-Chairperson of the Assembly, and in the absence of both the Chairperson and the Vice-Chairperson by the Vice-Chancellor. (6) The opinion of the majority shall prevail at the meeting of the Assembly, and if the votes are equal, the person chairing the meeting shall have a casting vote. Amended by Some Nepal Acts Relating to Education Amendment Act, 2077.(7) The person chairing the meeting of the Assembly shall certify the decision of the meeting. Added by Some Nepal Acts Relating to Education Amendment Act, 2077.(7a) The Registrar shall keep a record of the decisions or orders of the Assembly. A copy of such decision or order shall be sent to the Chancellor. (8) Other procedures relating to the meetings of the Assembly shall be as determined by the Assembly itself. 9. Functions, Duties and Powers of the Assembly: The functions, duties and powers of the Assembly shall be as follows: (a) To determine the policy of the University, (b) To provide guidance to the University and its subordinate bodies, (c) To determine and confer degrees to be awarded by the University, (d) To approve the long-term plan, annual budget and programs of the University, (e) To pass the rules relating to the University, (f) To discuss the annual reports of bodies under the University and evaluate their programs, (g) To discuss and approve the audit report of the University, (h) To constitute various committees, sub-committees or task forces as required, (i) To perform other functions as prescribed. Chapter-5 Formation, Functions, Duties and

Powers of the Academic Council 10.

Formation of the Academic Council: (1) There shall be an Academic Council to function as the body to organize the educational and academic activities of the University. (2) The Academic Council shall be formed as follows:- (a) Vice-Chancellor ? Chairperson (b) Registrar ? Member (c) Deans ? Member (d) Three from among Chairpersons of various Subject Committees of the University ? Member (e) One from among Campus Chiefs ? Member (f) One from among Teachers ? Member (g) Two from among Eminent Scholars ? Member (h) A Dean designated by the Vice-Chancellor from among the Deans ? Member-Secretary (3) Except for the ex-officio members under Sub-section (2), other members shall be nominated by the Vice-Chancellor. (4) The term of office of a nominated member under Sub-section (2) shall be three years. (5) If the office of a nominated member of the Academic Council falls vacant for any reason, another person shall be nominated for the remaining period by completing the procedure under Sub-section (3). (6) The procedure relating to the meetings of the Academic Council shall be as prescribed, and until so prescribed, the Academic Council itself may determine the procedure relating to meetings. 11. Functions, Duties and Powers of the Academic Council: The functions, duties and powers of the Academic Council shall be as follows:- (a) To determine and approve the curriculum of the University, (b) To specify the type of examinations to be conducted under the University, (c) To determine and maintain the academic quality of the University, (d) To formulate research policy and approve research programs, (e) To prescribe the qualifications required for admission to subjects of study and teaching at the University, the number of student admissions and the basis for admission, (f) To provide advice to the Executive Council on academic matters, (g) To recommend honorary degrees to be awarded by the University to the Assembly, (h) To perform other functions as prescribed. Chapter-6 Formation, Functions, Duties and Powers of the Executive Council 12.

Formation of the Executive Council: (1) There shall be an Executive Council to function as the executive body of the University. (2) The Executive Council shall be formed as follows:- (a) Vice-Chancellor ? Chairperson (b) One from among Deans ? Member (c) One from among Teachers ? Member (d) Registrar ? Member-Secretary (3) Except for the ex-officio members under Sub-section (2), other members shall be nominated by the Assembly on the recommendation of the Vice-Chancellor. (4) The term of office of a nominated member under Sub-section (2) shall be three years. (5) If the office of a nominated member falls vacant for any reason, another person shall be nominated for the remaining period by completing the procedure under Sub-section (3). (6) The procedure relating to the meetings of the Executive Council shall be as prescribed, and until so prescribed, the Executive Council itself may determine the procedure relating to meetings. 13. Functions, Duties and Powers of the Executive Council: The functions, duties and powers of the Executive Council shall be as follows:- (a) To implement or cause to implement the decisions and directives of the Assembly, (b) To prepare the annual program, budget, progress report, audit report and other proposals of the University and submit them to the Assembly for approval, (c) To operate, manage and protect the fund and movable and immovable property of the University, (d) Subject to the policy directives of the Assembly, to sell, lease or take on contract the movable and immovable property of the University, (e) To coordinate, supervise and inspect the programs operated by the University and submit a report thereof to the Assembly, (f) To prepare drafts of rules relating to the University and submit them to the Assembly for approval, (g) To appoint and promote teachers and employees required for the University on the recommendation of the Service Commission, (h) To determine student fees, (i) To accept financial and other assistance provided for the University, (j) To perform other functions as prescribed. Chapter-7 Faculty, Research Center and Other Bodies 14. Faculty: (1) For higher education to be conducted by the University, there shall be faculties as prescribed in subjects including arts, science, medical science, law, management, education, and others as specified. (2) The functions, duties and powers of a Faculty shall be as prescribed.

15. Research Center: (1) The University may establish Research Centers as required for conducting research in subjects including arts, science, medical science, law, management, education, and others. (2) Provisions relating to the establishment, functions, duties, powers and operation of a Research Center shall be as prescribed. 16.

Faculty Board: (1) In each Faculty, there shall be a Faculty Board as prescribed for the conduct of educational and academic programs. (2) There shall be Subject Committees as prescribed under the Faculty Board. (3) The functions, duties and powers of the Faculty Board and the committees thereunder, and the procedure relating to their meetings, shall be as prescribed. 17. Campus: (1) The University may establish and operate Campuses as required for providing higher education in various subjects. (2) Provisions relating to the establishment and operation of a Campus shall be as prescribed. 18. Curriculum Development Center: (1) There shall be a Curriculum Development Center for the determination and development of curricula for various subjects studied and taught at the University. (2) The establishment, functions, duties and powers of the Curriculum Development Center shall be as prescribed. 19. Affiliation with University: (1) If any campus of the private sector wishes to operate by obtaining affiliation from the University, the University may grant affiliation to such campus as prescribed. (2) A campus that has obtained affiliation under Sub-section (1) shall comply with the conditions prescribed by the University. 20.

Special Provision Regarding Operation of Campuses of Other Universities: (1) If a constituent or affiliated campus of any other university submits an application with a recommendation of its management committee to be associated with this University and remain as a constituent or affiliated campus, the process shall be initiated to grant recognition to such campus as a constituent or affiliated campus of this University. (2) The process under Sub-section (1) shall be as prescribed by the University. (3) After a campus is operated as a constituent campus of this University under Sub-section (1), the property in the name of such campus shall also be transferred to the constituent campus of the University. (4) After a campus is operated as a constituent campus of this University under Sub-section (1), the teachers and employees working in that campus shall continue as teachers and employees of the constituent campus of the University. (5) If any teacher or employee under Sub-section (4) does not wish to continue as a teacher or employee of the constituent campus of the University, he/she shall inform the concerned university within one year as determined by the Assembly or with the approval of the concerned university, and in such case, the University may, in consultation with the concerned university, employ such teacher or employee as a teacher or employee of the University. (6) For a teacher or employee who continues as a teacher or employee of the constituent campus of the University under Sub-section (4), the permanent service rendered in the concerned campus shall be deemed to have been rendered in the constituent campus under this University, and his/her service period shall be calculated accordingly. (7) If any teacher or employee continues in the constituent campus of the University under Sub-section (4) or (5), the previous remuneration, facilities and service conditions shall not be changed in a manner detrimental to them. Chapter-8 Service Commission 21.

Service Commission: (1) There shall be a Service Commission to recommend the appointment and promotion of teachers and employees of the University. (2) The Service Commission shall be formed as follows:- (a) Person appointed by the Chancellor ? Chairperson (b) Member of the Public Service Commission ? Member (c) One from among Teachers ? Member (3) A committee consisting of two members of the Assembly under the chairpersonship of the Pro-Chancellor shall be formed by the Chancellor to recommend the appointment of the Chairperson and member under clauses (a) and (c) of Sub-section (2), and the Chairperson and member shall be appointed by the Chancellor on the recommendation of that committee. (4) The term of office of the Chairperson and member appointed under Sub-section (3) shall be

four years. (5) Other functions, duties and powers of the Service Commission shall be as prescribed. (6) The remuneration, facilities and other service conditions of the Chairperson and members of the Service Commission shall be as prescribed. (7) The procedure relating to the meetings of the Service Commission shall be as prescribed, and until so prescribed, the Service Commission itself may determine the procedure relating to meetings. Chapter-9 Office Bearers, Teachers and Employees of the University 22. Chancellor: (1) The Prime Minister shall be the Chancellor of the University. (2) The Chancellor shall be the chief of the University. In the presence of the Chancellor, he/she shall occupy the chair of the convocation ceremony of the University. (3) The Chancellor may, as required, inspect the University and give directives to the University. 23. Pro-Chancellor: (1) Amended by Some Nepal Acts Amendment Act, 2062. The Minister or State Minister for Education, Science and Technology shall be the Pro-Chancellor of the University. (2) In the absence of the Chancellor, the Pro-Chancellor shall chair the convocation ceremony of the University. (3) The Pro-Chancellor may, as required, inspect the University and give directives to the University. 24.

Vice-Chancellor: (1) The Vice-Chancellor shall be the chief office bearer of the University working full time. (2) To recommend appointment to the post of Vice-Chancellor, the Chancellor shall form a three-member committee consisting of members of the Assembly including the Secretary of the Ministry of Education, Science and Technology.. (3) The committee under Sub-section (2) shall recommend the names of three persons eligible for appointment to the post of Vice-Chancellor, and the Chancellor shall appoint the Vice-Chancellor from among the persons so recommended. (4) The Vice-Chancellor shall have general control over all acts and business of the University and may give directives and supervise the acts and business of the University. (5) The term of office of the Vice-Chancellor shall be four years. (6) In the absence of the Chancellor and Pro-Chancellor, the Vice-Chancellor shall chair the convocation ceremony of the University. (7) The Vice-Chancellor shall implement or cause to implement the decisions and directives of the Assembly. (8) The Vice-Chancellor shall perform such functions as are not specified to be performed by any other body or authority under this Act or the rules made under this Act. He/she shall immediately inform the Chancellor of such work and cause it to be ratified at the next meeting of the Assembly. (9) In the absence of the Vice-Chancellor, his/her functions shall be as arranged by the Chancellor. (10) Other functions, duties and powers, remuneration, facilities and other service conditions of the Vice-Chancellor shall be as prescribed. 25. Registrar: The Registrar shall be appointed by the Chancellor on the recommendation of the Vice-Chancellor. 26. Dean: The Dean shall be appointed by the Executive Council. 27. Director: (1) There shall be separate Directors to function as chiefs of the Research Center and the Curriculum Development Center. (2) The Director shall be appointed by the Executive Council. 28. Functions, Duties and Powers, Remuneration, Facilities and Service Conditions of Registrar, Dean and Director: (1) The Registrar, Dean and Director shall be office bearers working full time for the University. (2) The term of office of the Registrar, Dean and Director shall be four years. (3) The functions, duties, powers, remuneration, facilities and other service conditions of the Registrar, Dean and Director shall be as prescribed. 29.

Other Office Bearers: (1) There shall be other office bearers as prescribed in the University. (2) The appointment, functions, duties and powers, remuneration, facilities and service conditions of the office bearers under Sub-section (1) shall be as prescribed. 30. Removal from Office: (1) If one-fourth of the existing members of the Assembly submit a written application to the Chancellor stating that the Vice-Chancellor, Chairperson of the Service Commission or Registrar has not fulfilled the responsibilities commensurate with his/her office, has not worked honestly, or has not behaved in a manner befitting the office, the Chancellor shall form a three-member investigation committee consisting of a member of the Assembly as chairperson, a member of the University Grants Commission, and the Secretary of the Ministry of Education, Science and Technology. (2) The investigation committee formed under Sub-section (1) shall

make necessary investigation in that regard and submit its report to the Chancellor within thirty days. (3) Upon receipt of the report under Sub-section (2), the Chancellor shall present the report before the Assembly. (4) Upon discussion of the report submitted under Sub-section (2), if the Assembly decides to remove the Vice-Chancellor, Chairperson of the Service Commission or Registrar from office, the Chancellor shall remove such Vice-Chancellor, Chairperson of the Service Commission or Registrar from office. Provided that, before such removal, he/she shall not be deprived of an opportunity to present a defense. (5) The procedure to be followed when investigating or removing other office bearers of the University, other than the Vice-Chancellor, Chairperson of the Service Commission or Registrar, on the grounds mentioned in Sub-section (1), shall be as prescribed. (6) If an investigation is initiated against any office bearer under this Section, he/she shall not be allowed to perform the functions of the office held by him/her until a final decision is made. Added by Some Nepal Acts Relating to Education Amendment Act, 2077.(7) For performing the day-to-day functions of the office bearer under Sub-section (6), the Chancellor may assign responsibility to the senior-most office bearer of the University. 31. Provision Relating to Teachers and Employees: (1) There shall be the required number of teachers and employees in the University. (2) The appointment, functions, duties and powers, remuneration, facilities and service conditions of the teachers and employees under Sub-section (1) shall be as prescribed. Chapter-10 Fund, Accounts and Audit of the University 32.

Fund of the University: (1) The University shall have its own separate fund, and the following amounts shall be deposited in that fund:- (a) Amount received from the Government of Nepal, (b) Amount received from the University Grants Commission, (c) Amount received from the local level, (d) Amount provided as donation, gift, charity and financial assistance by any person or institution, (e) Amount received as assistance or grant from persons or institutions associated with industry, trade or business, (f) Amount received as assistance or loan from international organizations, foreign persons, governments, agencies or financial institutions, (g) Amount received from fees and any other sources. (2) While receiving any amount under clause (f) of Sub-section (1), the University shall obtain prior approval of the Government of Nepal. (3) The amount of the University's fund shall be deposited by opening an account in a commercial bank specified by the Executive Council. (4) The operation of the University's fund and account shall be as prescribed. (5) All expenditures of the University shall be borne from the fund under Sub-section (1) in accordance with the approval of the Assembly. 33. Accounts and Audit: (1) The University shall keep the accounts of its income and expenditure in accordance with the accounting system adopted by the Government of Nepal. (2) The University shall make arrangements for an internal control system as prescribed for accounts. (3) The audit of the University shall be conducted by the Auditor General. Chapter-11 Miscellaneous 34. Certificate and Degree and Granting Recognition: (1) The University may award certificates and degrees as prescribed to students, trainees or researchers who have attained higher education in prescribed subjects, and may award honorary degrees to persons who have conducted research work and performed commendable work in the academic field. Amended by Some Nepal Acts Amendment Act, 2062.(2) The University may recognize academic degrees of other universities or educational institutions. 35. Qualification Required for Admission to the University: (1) The qualification required for admission as a student or researcher in the University shall be as prescribed. (2) While admitting students, the University shall, in accordance with the policy of the Government of Nepal, reserve seats for admission based on prescribed percentage for female, indigenous/ethnic group, Madhesi, Dalit, disabled, and backward class or community students. Added by Some Nepal Acts Relating to Education Amendment Act, 2077.35a.

Free Higher Education and Scholarship: (1) Higher education shall be free for Dalit, marginalized, disabled and economically impoverished students who meet the criteria prescribed by the University and are admitted to the University or its constituent and community educational institutions under its jurisdiction. (2) For the

purpose of Sub-section (1), other provisions relating to basis, criteria and classification shall be as prescribed by the Government of Nepal by publishing a notice in the Nepal Gazette. (3) A student may avail the facility under Sub-section (1) only once at each level. (4) Notwithstanding anything contained in the prevailing law, seats as prescribed shall be reserved for Dalit students for admission to technical and vocational higher education. (5) The University shall make provisions for higher education for the sons and daughters of martyrs, disappeared persons and persons with disabilities as provided in the prevailing law. (6) A student who has studied in a community school from grade six to grade ten shall receive a scholarship in higher education in accordance with the prevailing law. 36. To Act in Accordance with National Education Policy: It shall be the duty of the University to conduct its activities in accordance with the national education policy of the Government of Nepal. 37. Validity of Acts and Business not Affected: No act or business of the University shall be invalidated merely by reason of the vacancy in the office of any office bearer or member, or any defect in the appointment or nomination of any office bearer or member. 38. Protection of Acts Done in Good Faith: No suit or other proceedings shall lie against the University or any office bearer of the University in respect of any act done or attempted to be done in good faith pursuant to this Act or the rules made under this Act. 39. Prior Approval of Government of Nepal Required: The University shall obtain the approval of the Ministry of Finance of the Government of Nepal before approving any post of office bearer, teacher or employee that imposes a financial liability on the Government of Nepal, or before adding to the remuneration and service facilities of such office bearer, teacher or employee. 40.

Delegation of Powers: (1) The Assembly may, as required, delegate some of the powers conferred upon it by this Act or the rules made under this Act to the Academic Council, Executive Council or Vice-Chancellor. (2) The Academic Council may, as required, delegate some of the powers conferred upon it by this Act or the rules made under this Act to the Faculty Board. (3) The Executive Council may, as required, delegate some of the powers conferred upon it by this Act or the rules made under this Act to any office bearer or committee of the University. (4) The Service Commission may, as required, delegate some of the powers conferred upon it by this Act or the rules made under this Act to any committee or office bearer of the University. 41. Liaison with Government of Nepal: The University shall maintain liaison with the Government of Nepal through Amended by Some Nepal Acts Relating to Education Amendment Act, 2077.the Ministry of Education, Science and Technology. 42. Provision Relating to Dissolution of the University: (1) If the University cannot be operated for any reason, the Government of Nepal may, on the recommendation of the Assembly, dissolve the University. (2) If the University is dissolved under Sub-section (1), the movable and immovable assets of the University shall vest in the Government of Nepal. 43. Power to Make Rules: The University may make necessary rules to implement the objectives of this Act.